Mahesh Singh vs State Of Nct Of Delhi & Anr on 13 November, 2025

Author: Neena Bansal Krishna

Bench: Neena Bansal Krishna

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 3395/2025, CRL.M.A. 26546/2025, CRL.M.A. 33517/2025
MAHESH SINGH
Through: Mr
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versus
STATE OF NCT OF DELHI & ANR. .....Respon
Through: Mr. Utkarsh, APP for the Stat
CORAM:
HON'BLE MS. JUSTICE NEENA BANSAL KRISHNA
ORDER

% 13.11.2025

1. Third Bail Application under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (hereinafter referred to as 'B.N.S.S.' (erstwhile Section 439 of the Code of Criminal Procedure, 1973), has been filed on behalf of the Petitioner, Mahesh Singh for grant of Bail in FIR No 0392/2024 dated 15.11.2024 under Section 120B of the Indian Penal Code, 1860, registered at Police Station Mayapuri, District West

2. Status Report has been filed on behalf of the State. Let the same be taken on record.

3. It is submitted that the FIR was registered on the Complaint of the Respondent No. 2, Ms. Renu Kashyap against her maternal Uncle, Nand Lal, his son, namely, Jatin Rajput and daughter Ms. Mansi, as well as, the present Applicant, namely, Mahesh Singh. FIR pertains to a financial dispute between the Complainant and Nand Lal, arising out of their family This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/11/2025 at 22:07:11 relationship. The Applicant has no direct involvement interaction with the Complainant or her children and has never met them. The FIR is an outcome of the dispute between the Complainant and hr Mama, Nand Lal.

4. The Complainant has stated that the money had been transferred in the Account of her Mama, Nand Lal and his son, Jatin Rajput. The Applicant, therefore, has not received any money from the Complainant or her children in his Bank Account and has been falsely implicated in this Case. He

has been illegally arrested by the Investigating Officer in an intent to illegally detained him, without following due process of law.

5. Reliance is placed on Arnesh Kumar vs. State of Bihar and Satendra Kumar Antil vs. CBI and Anr.

6. The copy of the snapshot and WhatsApp indicating the notice of appearance dated 20.12.2024 under Section 35(3) of the Bharatiya Nyaya Sanhita, 2023, has been filed. It is submitted that the Applicant was illegally arrested from Lucknow in the night of 28.04.2025 and thereafter, produced before the learned JMFC in Tis Hazari Courts, which was in violation of his rights under Article 22 of the Constitution of India.

7. It is further stated that the Complainant, who had family relationship with Nand Lal, her maternal Uncle had visited him when he had come to Delhi, for his medical treatment and had requested him to arrange for a job for her children, namely, Mohit and Gunjan. Nand Lal assured that he had connections in Railway Uttar Pradesh and Bihar and would get the children job. The Respondent No. 2 paid Rs.14 Lakhs for getting the Government job for her children, to Nand Lal and Jatin Rajput. After making the transfer of the money in the Account of Nand Lal and Jatin Rajput, the Respondent No. 2 along with her children, went to Lucknow where they met a man, namely, This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/11/2025 at 22:07:11 Mahesh Singh and thereafter, went to Gaya, Bihar, for securing their jobs in Indian Railways.

8. The Applicant was asserted to be an employee of Indian Railway, who is working in Lucknow. However, it is stated that he is neither an employee of Indian Railways nor has any connection with the money of the Respondent No. 2, which was admittedly transferred to the Account of Nand Lal and Jatin Rajput. He has been implicated falsely in this case.

9. It is further submitted that the Applicant is in judicial custody since 28.04.2025. The Charge-Sheet has already been filed. No custodial interrogation is required. There is no likelihood of Applicant interfering with the evidence or tampering with the evidences. A prayer is therefore, made that he may be granted Regular Bail.

10. Status Report has been filed on behalf of the State wherein the details of the investigations have been explained. It is submitted that it is a case where Applicant in connivance with the other co-accused, has cheated the Complainant by taking money on the pretext of getting a Government job in the Indian Railways. Ms. Sushila Yadav, the wife of the Applicant, was not arrested and the Charge-Sheet against her, has been filed without arrest. Nand Lal and Jatin Rajpur have been placed in Column No. 12. The Applicant despite repeated Notices, willfully evaded investigations. There are serious and grave allegations about the pre-meditated financial fraud and conspiracy to cheat innocent persons. The Bail is, therefore, opposed. Submissions heard and the record perused.

11. It is a case where the Complainant in an endeavour to secure the job of her children, had paid a total of Rs.14 Lakhs to the Account of her maternal Uncle and Jatin Rajput and had allegedly paid Rs.7 Lakhs in cash This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/11/2025 at 22:07:11 during the period November 2020 till July, 2021. The money had got credited to the Account of the maternal uncle, Nand Lal and his son, Jatin Rajput, but they have been placed in Column No. 12. It is the case of the Prosecution that the amount of approximately Rs.14 Lakhs received in these two accounts, were transferred to the Account of Smt. Sushila, wife of the Applicant.

12. As per the Status Report, the investigations are complete and the Charge-Sheet already stands filed. The Applicant is in judicial custody since 28.04.2025

13. Considering the totality of circumstances, the Accused/Applicant is granted Regular Bail, on the following terms and conditions:

a) The Petitioner/Accused shall furnish a personal bond of Rs.35,000/- and one surety of the like amount, subject to the satisfaction of the learned Trial Court.

b) The Petitioner/Accused shall appear before the Court as and when the matter is taken up for hearing;

c) The Petitioner/Accused shall provide his mobile number/changed mobile number to the IO concerned which shall be kept in working condition at all times;

d) The Petitioner/Accused shall not indulge in any criminal activity and shall not communicate or intimidate the witnesses.

e) In case the Petitioner/Accused changes his residential address, the same shall be intimated to learned Trial Court and to the concerned I.O.

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14. The copy of this Order be communicated to the concerned Jail Superintendent, as well as, to the learned Trial Court.

15. The Bail Application is accordingly disposed of. Pending Applications, if any, also stand disposed of.

NEENA BANSAL KRISHNA, J NOVEMBER 13, 2025/RS This is a digitally signed order.

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